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Democrats struggle to regain supermajority in Sacramento after sexual harassment scandals

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The 'Me Too' movement forced the resignations of three California lawmakers and effectively ended the Democratic supermajority in the Legislature. And the reigning party in at least one of the two houses might not get it back this session.

The Assembly is poised on Tuesday to win special elections for seats that were left vacant when former Assemblymen Matt Dababneh and Raul Bocanegra stepped down last year. Now with 53 Democrats, the majority party in the lower house only needs to win one of the two special elections that will be decided this week to hit a supermajority threshold again.

Democrat Jesse Gabriel beat Republican Justin Clark by more than 2,000 votes during the first go-round for the Assembly District 45 slot in April. He also competed against five other Democrats and should have a larger edge in the runoff against Clark, the only Republican to throw his hat in the ring at all.

In AD 39, Democrat Luz Maria Rivas and Republican Ricardo Antonio Benitez go head-to-head. She notched over 4,000 more votes than Benitez in April and is expected to win the Democratic seat.

The Senate may be a different story.

Sen. Josh Newman is facing a tough recall election on Tuesday. The GOP has spent the last year tying the Fullerton Democrat to the unpopular gas tax and insiders say he could go down in an off-year election with disproportionately higher GOP turnout. Democrats have spent plenty of money to turn the tides, but some question whether it will make a difference.

Without Newman, a supermajority is out of reach in the upper house. If he survives, there's a chance Democrats could exercise two-thirds power in the closing days of the session.

Voters in Senate District 32 have not been represented since Tony Mendoza resigned in February. The former senator is running for the seat he vacated against eight other Democrats and two Republicans. It's unlikely that any of the candidates will receive over 50 percent of the vote, which means the top two will face off again on August 7.

The eventual winner in SD 32 could be sworn in before the session ends on August 31 and give Democrats a boost in last-minute votes.

Many insiders minimize the power of the supermajority. In reality, most major two-thirds bills, such as the gas tax and cap-and-trade extension, were passed with the help of Republicans last year. There are few similar lifts this year. And some, like the proposed water tax, already have some GOP support.

"To a certain extent, I think Republicans use the supermajority as a boogeyman to move the electorate," said Bill Wong, the political director for Assembly Democrats.

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CHANGE COMING: Chair Jodi Remke may have resigned last week, but her foes on the California Fair Political Practices Commission are moving forward with a proposal to strip the top role of its influence anyway. The now four-member commission is expected to adopt controversial policies to transfer much of the chair's power to the

executive director and establish two standing committees that could meet in secret with more governance control at its monthly meeting, which begins at 9 a.m. Monday at the commission's headquarters on Q street.

IT'S OFFICIALLY OFFICIAL: California Secretary of State Alex Padilla confirmed that no party preference voters outnumber Republicans in California, 25.5 to 25.1 percent as of May 21.

ENOUGH ACCOUNTABILITY: Gov. Jerry Brown vetoed a bill last week that required the state Senate to confirm his appointees to the board of directors for the High Speed Rail Authority. In rejecting AB 2307, Brown said the Legislature already appoints six of the 11 positions on the board, which provides an "unusual degree of accountability." Democratic Assemblyman Jim Frazier wasn't happy about the veto. He said other boards, such as the California Public Utilities Commission and the Air Resources Board, require candidates to be vetted in a public forum.

"Delivering the largest infrastructure project in the United States is a monumental task and as a major funding partner, the Legislature and the public should be involved in approving the people responsible for making decisions on nearly every aspect of the project," Frazier said.

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